

26STCV02927 26STCV02927

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-29

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Case Number: 26STCV02927 Hearing Date: July 29, 2026 Dept: 512

HEARING DATE: Wed., July 29, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: William

Jaeger, et al. v. TK Midwest South, LLC COMP. FILED: 1-28-26

CASE NUMBER: 26STCV302927

NOTICE: OK

PROCEEDINGS: DEMURRER

TO COMPLAINT

MOVING PARTY: Defendant

TK Midwest South, LLC

RESP. PARTY: Plaintiffs

William Jaeger and Colleen Jaeger, as Trustees of the Jaeger

Family Trust dated May 4, 2004

DEMURRER

TENTATIVE RULING:

TK

Midwest South, LLC's demurrer to the complaint is OVERRULED.

Moving party is ordered to
give notice.

SERVICE:

[X] Proof of

Service Timely Filed (CRC, rule 3.1300) OK

[X] Correct Address

(CCP §§ 1013, 1013a) OK

[X] 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITIONS: Filed

on July 16, 2026 ☐ Late ☐ None

REPLIES: Filed

on July 22, 2026 ☐

Late ☐ None

ANALYSIS:

I.

Background

On October 16, 2017, The Jaeger

Family Trust and third party EYM

King of Missouri, LLC entered into a lease for premises located at 4001 Blue Ridge Cutoff, Kansas City, Missouri. [First Amend. Comp., ¶ 17, Ex. A.] On June 22, 2018, the lease was assigned to third party Tasty King of Missouri, LLC.

[Id.]

On October 11, 2024, The Jaeger Family Trust obtained a judgment against Tasty King of Missouri in Jackson County, Missouri against Tasty King of Missouri, LLC for \$408,485.07. [First Amend. Comp., ¶ 21, Ex. B.] On October 15, 2024, a court in Clay County Missouri entered judgment of \$657,532.35 in favor of Plaintiff McCleary Road, LLC against Tasty King of Missouri, Tasty King of Kansas, and Tasty King of Iowa, on a breach of lease claim. [First Amend. Comp., ¶ 26, Ex. C.] Both judgments remain outstanding.

Plaintiffs allege Tasty King of

Missouri and Defendant TK Midwest South share common ownership through third party Thomas Scott, chief executive of third party TK PropCo, LLC. All entities operate in El Segundo, CA.

On January 28, and May 6, 2026,

Plaintiffs filed their complaint for Alter Ego Liability for Sister State

Judgments and Breach of Lease. The breach of lease claim alleges a failure to pay rent on the Jaeger Family Trust lease from the period of August 2024 through December 2024, thereby leaving an outstanding balance of \$58,509.19.

II.

Legal

Standard & Discussion

Demurrer

Defendant TK

Midwest South, LLC (TK) submits a demurrer to the second cause of action for breach of lease in the first amended complaint. TK presents voluminous argument for the primary position that the lease was found terminated in 2023, thereby barring any claim for rent damages in 2024. The position relies on extensive citation to pleadings filed in the Missouri action, whereby Plaintiffs allegedly made certain “judicial admissions,” thereby barring the subject action. TK relies on the doctrine of “sham pleading” in that Plaintiffs filed an invalid, factually contradictory complaint. TK next contends the breach of lease claim is barred by judicial estoppel, and constitutes claim splitting (e.g. Plaintiff was required to bring all claims as to the lease in the prior action), thereby violating the “one judgment rule.” On the actual factual allegations, TK challenges the legal sufficiency of the cause of action.

Plaintiffs in opposition challenge the

demurrer as seeking a factual determination at the pleading stage. Plaintiffs deny any proof of lease termination. Plaintiffs deny any “judicial admission” basis for the challenge, or application of the one judgment bar. Plaintiffs challenge any showing of judicial estoppel or claim splitting. Plaintiffs also deny any violation of the sham pleading standard.

TK in reply reiterates

the content of the pleadings as creating the basis for a barred action. The judicial admissions and subject action confirm the operative complaint

constitutes a “sham” pleading.” Judicial estoppel established in the Missouri judgment precludes any further litigation. The one judgment rule further bars any claim splitting. TK presents a position challenging the “rent survivor clause” position raised in a footnote in the opposition as a basis for ongoing damages (Opposition, 2:22 (footnote 1), and also addresses the alter ego positions summarized in the opposition. (The position was raised in opposition as part of the summary of the dispute, but not substantively addressed as part of any material defense to the demurrer.)

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616; Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139 [“U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.]

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 [“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a

complaint is capable of cure, the court should allow leave to amend."].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

K

Requests
for Judicial Notice

On Defendants request for judicial notice, the court can take judicial notice of the existence of pleadings and claims, but not for the content of any pleading for the truth of the matter asserted. The court cannot take judicial of the court docket for determination of any dispositive factual finding in reviewing the subject operative complaint. The court can acknowledge the judgment in The Jaegar Family Trust breach of lease action, but cannot accept the judgment as a superseding finding thereby undermining the requirement that the court consider the operative pleading as truthful under the demurrer standard. (Sosinsky v. Grant (1992) 6 Cal.App.4th 1548, 1568-1569.)

To the extent Defendant presents a position based on claim preclusion, consideration of any preclusive effect, however, the court may consider the prior judgment. "Taking judicial notice of a finding in determining its preclusive effect does not involve a determination of the finding's truth. ... In other words, even though a factual finding in a prior judicial decision may not establish the truth of that fact for purposes of judicial notice, the finding itself may be a proper subject of judicial notice if it has a res judicata or collateral estoppel effect in a subsequent action." (Rincon EV Realty LLC v. CP III Rincon Towers, Inc. (2019) 43 Cal.App.5th 988, 1005–1006.)

For Plaintiffs' request for judicial notice, as addressed with Defendant's request, the court cannot take notice of the content of any leases, pleadings, court dockets, petitions, affidavits, and transcripts, except for any operative lease incorporated into the challenged complaint. To the extent the lease and assignment is incorporated into the first amended complaint, the terms are reviewable for purposes of the demurrer. (Avery v. Integrated Healthcare Holdings, Inc. (2013) 218 Cal.App.4th 50, 69; Shaw v. Regents of University of California (1997) 58 Cal.App.4th 44, 54.) The court will

also consider the judgment if presented for determination of any preclusive effect. (Rincon EV Realty LLC v. CP III Rincon Towers, Inc., supra, 43 Cal.App.5th at pp. 1005–1006.)

Venue

The court assumes jurisdiction was selected in Los Angeles County due to the location of TK in Los Angeles notwithstanding performance of the contract and presumably execution of the agreement occurred in Missouri. (Code Civ. Proc., § 395.5.) TK makes no motion for a change of venue, and potentially waived any such challenges upon the filing the demurrer thereby making a general appearance in the action. (See Code Civ. Proc., §§396b, 397; Walt Disney Parks & Resorts U.S., Inc. v. Superior Court (2018) 21 Cal.App.5th 872, 879-880.)

Claim

Preclusion

The doctrine of res judicata gives certain conclusive effect to a former judgment in subsequent litigation involving the same controversy. It seeks to curtail multiple litigation causing vexation and expense to the parties and wasted effort and expense in judicial administration. Res judicata, or claim preclusion, prevents relitigation of the same cause of action in a second suit between the same parties or parties in privity with them. Under the doctrine of res judicata, if a plaintiff prevails in an action, the cause is merged into the judgment and may not be asserted in a subsequent lawsuit. All claims based on the same cause of action must be decided in a single suit; if not brought initially, they may not be raised at a later date. Res judicata precludes piecemeal litigation by splitting a single cause of action or relitigation of the same cause of action on a different legal theory or for different relief. (Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 897.) “Res Judicata is not a bar to claims arising after the filing of the initial complaint.” A party may assert new claims in an amended pleading, “but if no such pleading is filed, a plaintiff is not foreclosed. [Citation.] The general rule that a judgment is conclusive as to matters that could have been litigated ‘does not apply to new rights acquired pending the action which might have been, but which were not, required to be litigated [Citation]’.” (Allied Fire Protection v. Diede

Const., Inc. (2005) 127 Cal.App.4th 150, 155; Planning & Conservation League v. Castaic Lake Water Agency (2009) 180 Cal.App.4th 210, 226-227.)

"In general, collateral estoppel precludes a party from relitigating issues litigated and decided in a prior proceeding.

(Citations.) 'Traditionally, we have applied the doctrine only if several threshold requirements are fulfilled. First, the issue sought to be precluded from relitigation must be identical to that decided in a former proceeding. Second, this issue must have been actually litigated in the former proceeding. Third, it must have been necessarily decided in the former proceeding. Fourth, the decision in the former proceeding must be final and on the merits. Finally, the party against whom preclusion is sought must be the same as, or in privity with, the party to the former proceeding. (Citation.)'" (Gikas v. Zolin (1993) 6 Cal.4th 841, 848–849.)

"Judicial estoppel is an equitable doctrine aimed at preventing fraud on the courts.' (Citation.) It prohibits a party from taking inconsistent positions in the same or different judicial proceedings. (Citation.)" (M. Perez Co., Inc. v. Base Camp Condominiums Assn. No. One (2003) 111 Cal.App.4th 456, 463.)

"Where a party files an amended complaint and seeks to avoid the defects of a prior complaint either by omitting the facts that rendered the complaint defective or by pleading facts inconsistent with the allegations of prior pleadings" the pleading is considered a sham pleading. (Owens v. Kings Supermarket (1988) 198 Cal.App.3d 379, 383-384; Berman v. Bromberg (1997) 56 Cal.App.4th 936, 946 ["A pleader may not attempt to breathe life into a complaint by omitting relevant facts which made his previous complaint defective"].) A pleader is entitled to explain any inconsistencies. (Ibid; Vallejo Development Co. v. Beck Development Co. (1994) 24 Cal.App.4th 929, 946.)

The October 11, 2024 judgement relied upon in the subject action is incorporated into the first amended complaint, and therefore reviewable. [First Amend. Comp., Ex B.] The parties also submit copies of the same judgment in their respective requests for judicial notice. As addressed in the

judicial notice standard, the court can review the judgment itself for its effect on the judgment. The actual judgment however only awards damages and contract fees. Lacking is any attendant order or findings by the Missouri court regarding the basis for the judgment. The paucity of contextual information prevents the court from reviewing the parameters of any relief thereby allowing the court to potentially determine certain legal findings. Without such information, the court cannot conclude in the subject demurrer, whether the subject action should be barred under the doctrines of claim preclusion, claim splitting, collateral estoppel, res judicata, or the "one judgment rule." (Mycogen Corp. v. Monsanto Co., supra, 28 Cal.4th at p. 897; Allied Fire Protection v. Diede Const., Inc., supra, 127 Cal.App.4th at p. 155; Planning & Conservation League v. Castaic Lake Water Agency, supra, 180 Cal.App.4th at pp. 226-227.)

Because the court also lacks any discussion regarding the actual prior operative pleading submitted to this Court in this action, the Court also finds no basis for consideration of any "judicial admission" and application of the sham pleading doctrine. (Owens v. Kings Supermarket, supra, 198 Cal.App.3d at pp. 383-384; Berman v. Bromberg, supra, 56 Cal.App.4th at p. 946.)

As cited above, the law in California allows for new action based on new right acquired, separate and apart from any prior claims to proceed. TK presents no support for any position as to the requirement that Plaintiffs bring all potential claims in the prior action, thereby precluding later action and potential claim splitting. (Allied Fire Protection v. Diede Const., Inc., supra, 127 Cal.App.4th at p. 155; Planning & Conservation League v. Castaic Lake Water Agency, supra, 180 Cal.App.4th at pp. 226-227.) Plaintiffs may also additionally and alternatively plead new causes of action potentially impacted by the first cause of action as well. (Third Eye Blind, Inc. v. Near North Entertainment Insurance Services, LLC (2005) 127 Cal.App.4th 1311, 1323; Rader Co. v. Stone (1986) 178 Cal.App.3d 10, 29.)

The first amended complaint, as presented, therefore sufficiently alleges breach of lease. Any challenges arising from the actual plain language of the lease was not raised. Any challenges under Missouri law regarding accelerated damages and

required mitigation measures requires actual support for binding application of

Missouri law, rather than California law. (See *Frontier Oil Corp. v. RLI Ins. Co.* (2007) 153 Cal.App.4th 1436, 1460; see also *WEA Crestwood Plaza, L.L.C. v. Flamers Charburgers, Inc.* (Mo. Ct. App. 2000) 24 S.W.3d 1, 7.)

III.

Conclusion

& Order

For the foregoing reasons, the demurrer to the first amended complaint is overruled.

TK is ordered to give notice.